



COMPASSION IS NOT A CRIME

EUTHANASIA (2001)

IN CONTEXT

FOCUS

Criminal law

BEFORE

1997 Oregon becomes the first US state to legalize assisted suicide.

1998 Dignitas, the world's first provider of euthanasia services, opens in Switzerland.

AFTER

2002 Belgium follows the Dutch by legalizing euthanasia and assisted suicide.

2005 France's Leonetti law allows limitation of treatment for patients at the end of life.

2017 Belgium reports 2,309 legal deaths from euthanasia—two of which are of minors.

2019 Italy's highest court rules that assisted suicide is not always a crime.

2019 The controversial case of Vincent Lambert ends with the French court ruling that his life support can be turned off.

Euthanasia remains one of the most contentious issues of the 21st century. Many ask if the deliberate taking of a human life is ever justified. Medical ethics are intended to preserve human life, not to end it, and almost every religion is similarly opposed to so-called mercy killings. There is also concern that legalized euthanasia could lead to sanctioned killing of the elderly, disabled, and vulnerable without their consent. On the other hand, there are circumstances of such incurable suffering that extending life amounts to a form of torture.

At the center of this debate is modern medical science, which can sustain life but cannot always

stop the suffering of those it keeps alive. For patients who hope only for an end to their agonies, why should their desire for the right to die be overridden by the scruples of others? The point is thrown into sharper relief when the means to a painless, medically administered death are so readily available.

Clarifying the debate

Definitions are key in understanding the debate. Euthanasia is when a doctor is legally able to bring about the death of a patient who is suffering from an incurable or terminal disease. It is subdivided into voluntary euthanasia, which is carried out with the consent of the patient, and nonvoluntary, where the patient is being kept alive artificially on life support and is unable to give their consent, so a third party—invariably a close family member—provides consent.

Euthanasia can be either active—brought about by the doctor by means of an injection—or passive, in that life-sustaining medicines are withheld. The latter is not to be confused with palliative sedation, when terminally ill patients are kept under sedation until they die. In contrast to euthanasia, assisted



Reject the temptation ...
to use medicine to support
a possible willingness
of the patient to die.

Pope Francis, 2019

